

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201805134	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/18/2018 9:14 AM	Location of Incident: Inside § 87(2)(b) [REDACTED]	18 Mo. SOL 12/18/2019	Precinct: 44		
Date/Time CV Reported Mon, 06/18/2018 9:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/26/2018 12:19 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT Desmond Nichols	5213	944850	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Lee Rubin	19864	963249	044 PCT
2. POF Ofelia Mero	06897	954131	044 PCT
3. POF Yajaira Garcia	25061	962746	044 PCT
4. POF Armena Marku	18040	958877	044 PCT
5. POM Corey Simpson	18066	959237	044 PCT
6. POM Joseph Modica	25713	964174	044 PCT
7. POM Dahuan Li	20848	963118	044 PCT
8. POM Michael Rivera	15745	963836	044 PCT
9. POM John Kim	04935	947133	044 PCT
10. POM Ivan Angeles	06975	948619	044 PCT
11. POM Anthony Basora	19701	958293	044 PCT
12. POF Roseleny Peralta	04146	961088	044 PCT
13. POM Todd Campbell	16206	931576	044 PCT
14. POF Marycather Nashlenas	23091	959839	044 PCT
15. POM Christophe Egan	14190	935336	044 PCT
16. POM Anthony Fiore	12343	961762	044 PCT
17. POF Amelia Brown	22875	962270	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Desmond Nichols	Abuse: Sergeant Desmond Nichols entered § 87(2)(b) [REDACTED]	A . Substantiated
B . SGT Desmond Nichols	Abuse: Sergeant Desmond Nichols searched § 87(2)(b) [REDACTED]	B . Substantiated

Case Summary

The CCRB received the following case from IAB on June 26, 2018, filed by complainant/victim § 87(2)(b)

On June 18, 2018, at approximately 9:14 am, § 87(2)(b) was at home in her apartment at § 87(2)(b) in the Bronx, when Sgt. Desmond Nichols (44th precinct) arrived at her door with twelve other officers, looking for her son § 87(2)(b) § 87(2)(b). When Sgt. Nichols asked § 87(2)(b) if he was inside, she assured him that he was not. However, Sgt. Nichols then stepped around § 87(2)(b) and entered the apartment without her consent, prompting the other officers to follow him in (**Allegation A – Premises Entered: Substantiated**). After conducting a brief search, the officers exited without finding § 87(2)(b) inside (**Allegation B – Premises Searched: Substantiated**).

Video footage of the incident was captured on the responding officers' body worn cameras (BWCs). (BR02-BR06)

Allegation A – Abuse of Authority: Sergeant Desmond Nichols entered § 87(2)(b)

§ 87(2)(b):

Allegation B – Abuse of Authority: Sergeant Desmond Nichols searched § 87(2)(b)

§ 87(2)(b):

It is undisputed that Sgt. Desmond Nichols entered and searched apartment § 87(2)(b) without a warrant or § 87(2)(b)'s consent. § 87(2)(g).

§ 87(2)(b) testified as follows. On June 18, 2018, at about 8:45 am, her son § 87(2)(b) § 87(2)(b) dropped by her two bedroom home – § 87(2)(b) (see aerial view below) – to retrieve some of his belongings. At the time, § 87(2)(b) had been visiting New York from Virginia, with his wife § 87(2)(b) and their two children. While they had intermittently stayed with her during this period, the family had had slept elsewhere the night before. After § 87(2)(b) left with his things, at approximately 9:15 am, several officers came to her door and hurriedly asked: “Did the man come in here?” When she said no and asked for an explanation, they quickly walked away without answering, at which time she became aware that officers were making the same inquiry with other residents on the floor. § 87(2)(b) went back to what she was doing, but then received a call from § 87(2)(b) who told her: that she had been downstairs when § 87(2)(b) returned from the apartment; that an argument had led to § 87(2)(b) hitting her, because of which she called 911; and that when officers responded, he had fled into § 87(2)(b)'s building. Sgt. Nichols and about 12 officers arrived soon after this call. Though she told Sgt. Nichols that § 87(2)(b) § 87(2)(b) was not inside, he entered and searched the apartment anyway without her consent, with the officers' behind him. § 87(2)(b) only knew that the officers inspected both bedrooms; she did not see what they did inside. (BR01)



Though Sgt. Nichols's BWC was not operational (as explained below), the events were recorded from a proximate perspective by his partner PO Amelia Brown's BWC, and further supplemented by other officers' BWCs. relevant segments of the footage are embedded in the following page as videos 1, 2, 3, and 4 and 5 (see originals at BR02 – BR 06, and full summary at BR07).



In video 1 above, PO Brown and Sgt. Nichols pull up to § 87(2)(b) at 9:04 am, exit their vehicle, and run into the vestibule of the building. With Sgt. Nichols in the lead, the officers then step through a shattered secondary door, run down a hallway, and then up one flight of stairs to the second floor. At this point, both officers stop running and PO Brown radios for backup to the location. PO Brown and Sgt. Nichols then go back downstairs, passing by several officers. PO Brown tells them that “he ran upstairs,” several voices including Sgt. Nichols say “§ 87(2)(b) PO Brown and Sgt. Nichols then exit the building, at which point Sgt. Nichols states over radio –that “he ran into the building, § 87(2)(b) – possibly apartment § 87(2)(b) referring to § 87(2)(b) § 87(2)(b) (between 09:05:30 – 9:05:45). PO Brown then also states that “he ran into apartment § 87(2)(b) They then reenter the building to conduct a canvas.

BWC footage from the earlier group of officers (PO Garcia, PO Mero, and PO Li, and PO Rubin) show them proceeding to apt. § 87(2)(b) up a different staircase. (BR03-BR06) At 9:06:00 in video 2, § 87(2)(b) opens the door to the officers' rapidly asking if someone just went into the apartment. She confirms that no one did so and that she is by herself inside. Sgt. Nichols can be seen arriving outside the apartment immediately thereafter, and the officers tell him that the apartment is § 87(2)(b). However, Sgt. Nichols moves on in the opposite direction to another side of the building. (BR03)

In videos 3 and 4, Sgt. Nichols then runs back outside and into what appears to be a narrow courtyard within the building or an alley adjacent to it, where they are told by a civilian at 9:08:30 that “he jumped over the gate...” PO Brown and Sgt. Nichols then return to the entrance to meet with § 87(2)(b) where PO Brown tells her: “You say you live in § 87(2)(b) because someone else lives [there].” § 87(2)(b) clarifies that § 87(2)(b)'s mother lives in the apartment. When § 87(2)(b) asks if § 87(2)(b) has been apprehended, PO Brown states that she “doesn't even know” if he is still in the building. Between 9:11:59 - 9:12:15, an officer then tells Sgt. Nichols that “they just went up, there is nobody there...only a lady there by herself.” When Sgt. Nichols asks “did they go inside the apartment,” the officer says that “she didn't want” them to do so. Sgt. Nichols then announces: “Let's go inside the apartment...” (BR02)

Finally, in video 5, Sgt. Nichols, PO Brown, and several other officers then make their way up to apt. § 87(2)(b) § 87(2)(b) opens the door Sgt. Nichols asks: “Is he inside?” § 87(2)(b) states: “No, he is not in the apartment.” Moving past her, Sgt. Nichols then enters the premises at 9:14:10, with PO Brown and other officers behind him, as § 87(2)(b) objects. After about 45 seconds inspecting the rooms inside, the officers then exit the apartment. (BR02)

PO Brown confirmed that the officers lost sight of § 87(2)(b) as he ran down the § 87(2)(b) floor hallway. She was not aware of any officer or civilian expressly stating that they had seen § 87(2)(b) run into § 87(2)(b) (BR09)

Sgt. Nichols, however, stated that as he pursued § 87(2)(b) through the shattered door and chased him up the staircase, he suddenly realized that his BWC camera had fallen along the way. Aware that multiple officers were directly behind him, Sgt. Nichols then decided to stop running when he reached the second floor, because the other officers were in position to continue after § 87(2)(b) and – as he stated – “inherit” his “hot pursuit.” As such, Sgt. Nichols stated that he did not “lose” § 87(2)(b). But Sgt. Nichols could not articulate any specifics whatsoever regarding his visual contact with § 87(2)(b) during their movement up the staircase, and could not describe the general direction of § 87(2)(b)’s flight when he stopped running after him. He also did not recall how many officers then followed § 87(2)(b) or if they subsequently communicated any information about where § 87(2)(b) had gone. He could not refer to any point in the BWC footage that showed this either. Because Sgt. Nichols had never been to the building before, he knew nothing about its size, layout, or entrances and exits, and did not establish a perimeter around the surrounding area. Sgt. Nichols ultimately went up to § 87(2)(b) after § 87(2)(b) advised that § 87(2)(b) lived there with his mother. Sgt. Nichols acknowledged that he entered the apartment without § 87(2)(b) consent, in order to ensure for himself that § 87(2)(b) was not inside. He did not believe that § 87(2)(b) was ever apprehended. (BR10)

Police radio communications during the incident largely mirror the chronology and content of the BWC footage. They also show that after Sgt. Nichols and PO Brown relay that § 87(2)(b) ran into § 87(2)(b), another sergeant on scene goes on to state, at 9:07:56, that “an individual is climbing the gate at the back.” By 9:10:00, the dispatcher repeatedly announces that § 87(2)(b) was last seen “climbing over the gate at the rear of § 87(2)(b).” There are no other communications regarding visual contact with § 87(2)(b) (BR11-BR12). The audio recording of § 87(2)(b)’s 911 call is brief; she reports that § 87(2)(b) hit her and says she is outside her vehicle at § 87(2)(b). (BR13)

Absent exigent circumstances, the police may not cross the entrance to a home to make a warrantless arrest. (Payton v. New York, 445 U.S. 573 [1980]; BR15) Under the hot pursuit exception to the general warrant requirement, officers may follow a fleeing suspect into private property when there is probable cause to arrest and an “immediate or continuous pursuit” from the scene of the crime. (Welsh v. Wisconsin, 466 U.S. 740 [1984]; BR16) But if the chase is not immediate and continuous, or if officers do not know if the suspect is actually inside the premises in question, the hot pursuit exception does not apply. (People v. Hunter, 92 A.D.3d 1277 [2012]; BR17)

§ 87(2)(g)
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§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that
Allegations A and B be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the fourth CCRB complaint to which § 87(2)(b) [REDACTED] has been a party.
 - Sgt. Nichols has been a member of service for 11 years and has not been a subject in any prior CCRB complaints, but is presently listed as a subject in an active case on one allegation.
- § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

§ 87(2)(b) [REDACTED] rejected mediation. Notice of claim results are pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(b)] [REDACTED]
[REDACTED]

Squad No.: 08

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Date